

****25.10.2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in October 2023 regarding the operator SC Spark Car Sharing SRL and found a violation of the provisions of Article 5 paragraph (1) letters a) and b) in relation to Article 6 paragraph (1) and Article 7, as well as Article 17 of Regulation (EU) No. 2016/679.

As such, the operator was sanctioned with an administrative fine of 4,975.20 lei (equivalent to 1,000 EURO) and a warning.

The investigation was initiated following a complaint submitted by a data subject alleging a possible violation of the provisions of Regulation (EU) No. 2016/679 by the operator SC Spark Car Sharing SRL, a vehicle rental company operating in a car-sharing model through a software application. During the investigation, it was found that the operator did not process the client's email address for direct marketing purposes either based on consent or any other legal basis. Additionally, it was established that the individual requested the deletion of all their data from the application. Although the operator informed the client that it would delete their data, it continued to send a series of direct marketing messages to their email address.

As a result, a violation of the principles of personal data processing provided by Article 5 paragraph (1) letters a) and b) in relation to Article 6 paragraph (1) and Article 7 of Regulation (EU) No. 2016/679 was established against the operator SC Spark Car Sharing SRL, which did not provide evidence that it processed the client's email address with their freely given and specific consent or based on any other legal basis and sent them multiple commercial messages.

Furthermore, during the investigation, it was found that the operator used the client's email address to send messages via electronic mail after the data subject exercised their right to data deletion, thus violating the provisions of Article 17 of Regulation (EU) No. 2016/679.

At the same time, during the investigation, the operator was also subjected to the corrective measure of ensuring compliance of personal data processing operations with the conditions regarding consent for data processing based on consent as a legal basis for processing.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****